

M/s Jai Maa Laxmi Sheetgrah Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 27 January 2016 · Writ-C No. 3345 of 2016 · **Writ disposed; competent authority to decide the reconnection application in accordance with law.**

HEADNOTE

Writ seeking reconnection under clause 6.14 of the U.P. Electricity Supply Code, 2005, after disconnection two days before the bill due date, disposed of without examining the merits. The consumer was to apply within ten days; the competent authority was to decide expeditiously, preferably within two weeks, in accordance with law.

FACTUAL SUMMARY

The petitioner, a private limited cold-storage company, had its electricity connection disconnected on 24 October 2015, two days before the last date mentioned in the bill for depositing the billed amount. Invoking clause 6.14 of the U.P. Electricity Supply Code, 2005, it approached the High Court for reconnection on the plea that part of the billed amount had already been deposited. Standing counsel for the Corporation stated that the petitioner may move an application for that purpose.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

reconnection of supply

HOLDING

A writ seeking reconnection under clause 6.14 of the U.P. Electricity Supply Code, 2005, after disconnection for non-deposit of billed charges, was disposed of without a merits determination: if the consumer applied within ten days with a certified copy of the order, the competent authority was to take an appropriate decision expeditiously, preferably within two weeks, in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE DISCONNECTION TWO DAYS BEFORE THE BILL DUE DATE, AND ENTITLEMENT TO RECONNECTION UNDER CLAUSE 6.14

The Court expressly declined to adjudicate the merits, leaving them to the competent authority in accordance with law. ¶ 1